

M/s Janki News Print Ltd. v. Pashchimanchal Vidyut Vitran Nigam Ltd.

Allahabad High Court · Division Bench · 19 August 2026 · Writ-C No. 7901 of 2012 · **Writ dismissed for alternative remedy; s.111 appeal if filed in one month to be heard on merits, limitation not to be gone into.**

HEADNOTE

Mandamus for refund of system loading charges and a declaration that Clauses 4.6(h)(i) and 4.21(a) of the U.P. Electricity Supply Code, 2005 are ultra vires is refused. Following dismissal of an identical writ, the petition is dismissed for alternative remedy, with liberty to appeal under Section 111 of the Electricity Act, 2003 within one month; that appeal is to be decided on merits without examining limitation.

FACTUAL SUMMARY

M/s Janki News Print Ltd. sought mandamus directing Pashchimanchal Vidyut Vitran Nigam Ltd. to refund Rs 36,82,000 realised as system loading charges, with interest, and to declare Clauses 4.6(h)(i) and 4.21(a) of the U.P. Electricity Supply Code, 2005 ultra vires Sections 42(1), 43 and 46 of the Electricity Act, 2003 read with Clause 4.2 of the Code. An identical writ (Writ-C No. 67768 of 2009) had been dismissed on 5 January 2026 for alternative remedy.

HOLDING-UNITS

HOLDING-UNIT · EA2003::111

alternative remedy — appeal

HOLDING

Following dismissal of identical Writ-C No. 67768 of 2009, the writ seeking refund of system loading charges and vires of Supply Code cls. 4.6(h)(i) and 4.21(a) is dismissed on alternative remedy. If the petitioner files an appeal under s.111 EA 2003 before the Appellate Authority within one month, that authority shall decide it on merits without entering into limitation. ¶ 3-5

FLAG ambiguous_clause

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VIRES OF CLS. 4.6(H)(I) AND 4.21(A) UP-2005 (SYSTEM LOADING CHARGES VIS-À-VIS SS. 42(1), 43, 46 EA 2003 AND CL. 4.2)

Dismissed on alternative remedy without examining the challenge.

NOT DECIDED — REFUND OF RS 36,82,000 SYSTEM LOADING CHARGES WITH INTEREST

Not reached.

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
Writ-C No. 67768 of 2009			Court	Referred
Writ-C No. 67768 of 2009 (Allahabad High Court, 05.01.2026)				

